



May 5, 2025

Office of Governor Gregory Gianforte
P.O. Box 200801
Helena, Montana 59620

RE: VETO REQUEST – SB 297

Dear Governor Gianforte:

On behalf of the advertising industry, we respectfully ask that you **VETO SB 297**.¹ SB 297 would eliminate the reasonable, temporary opportunity for businesses to cure alleged violations of the Montana Consumer Data Privacy Act (“MTCDPA”), a law that took effect approximately seven months ago. Removal of the MTCDPA’s cure period now, when it is only slotted to last through April 1, 2026, is unnecessary, would strain state enforcement resources, and would result in punitive enforcement for technical violations of novel privacy requirements. We therefore ask you to **VETO SB 297**.

- **Eliminating MTCDPA’s cure period six months earlier than statutorily provided is unnecessary and unfair.** The MTCDPA’s cure period sunsets on April 1, 2026. SB 297, if passed, would take effect on October 1, 2025, thereby cutting the cure opportunity in MTCDPA short by six months. This change is wholly unnecessary. Removing the cure period now would suddenly and prematurely subject Montana businesses to enforcement without a reasonable opportunity to rectify alleged violations.
- **Cure periods support compliance.** Many state consumer privacy laws contain cure periods, which provide businesses the opportunity to bring practices in line with legal requirements before facing potential penalties or fines.² SB 297’s proposed removal of the cure opportunity in MTCDPA would cut short controllers’ reasonable ability to rectify alleged violations of the law prior to enforcement. Cure periods have proven effective in promoting prompt compliance by businesses, even in the absence of enforcement actions. Given the nuanced differences across state consumer privacy laws, businesses acting in good faith to comply with MTCDPA need opportunities to cure alleged violations before becoming subject to enforcement.
- **Cure periods reduce strain on state enforcement resources.** Cure periods allow businesses to swiftly resolve compliance issues, oftentimes obviating the need for enforcement. This structure helps to conserve state enforcement resources for actions that amount to more than technical violations of the law. Removing the cure period in MTCDPA will add costs to state enforcement authorities.

¹ Montana SB 297 (2025-2026 Reg. Sess.), located [here](#).

² See, e.g., Tenn. Code Ann. § 47-18-3212(b); Tex. Bus. & Com. Code Ann. § 541.154(1); Va. Code Ann. § 59.1-584(B).



- **MTCDDPA's cure opportunity gives businesses a reasonable opportunity to rectify violations of new legal standards.** SB 297 would remove a temporary cure period for brand new privacy requirements that only became effective on October 1, 2024. The time-limited cure period was designed to provide businesses with a reasonable window to address and resolve alleged violations without immediate penalties, especially in the complex landscape of evolving state privacy laws. The MTCDDPA has been in effect for approximately seven months, and many companies are still navigating its requirements, adapting their businesses, and implementing necessary changes. Removal of the cure period via SB 276 would place undue pressure on these businesses, potentially subjecting them to immediate penalties for unintentional missteps made in good faith.

By eliminating the MTCDDPA's already time-limited cure period, the legislature would undermine the delicate balance of protecting consumer rights while supporting businesses' good faith efforts to comply with law. This impact would particularly be acute for non-profit organizations that would now be subject to the MTCDDPA due to the SB 297's elimination of the non-profit exemption, leaving them little time to come into compliance.

We strongly urge you to **VETO SB 297**.

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Thank you in advance for your consideration of this request.

Sincerely,

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